

Butler, "were formerly entertained, it now appears to be the *settled opinion of the profession that a [*215] devise to two and the survivor of them, and the heirs and assigns of such survivor, enables the trustees to vest the fee in the purchaser, and that titles under such a devise are accepted with a conveyance from the trustees and without the concurrence of the heir" (a).

6. **Implied devise in the word "trustee."**—If a testator simply appoint a person his executor and *trustee*, it seems the latter word is not so exclusively applied to real estate, as to carry by implication to the executor a devise of the testator's freeholds, but if the testator direct certain acts to be done by the trustee, [or by the executor,] which belong to the owner of the freeholds, [or which require that the trustee or executor should have dominion over the real estate,] such a devise will be implied (b); [but the implication will only arise when it is necessary to make the words used by the testator sensible (c).] And so if a testator appoint a person his "trustee of inheritance," which is equivalent to making him the trustee of his inheritable property (d); or if a testator appoint "A. and B. trustees as also their *heirs* or assigns, not making them accountable for any losses except by their own neglect, and the one not to suffer for the other's negligence" (e). And if a testator constitute a trustee by will, and devise the legal estate to him, and then by a codicil "nominates and appoints another person to be *trustee*" in his place, the codicil not only confers the office of the trusteeship, but also carries the legal estate with it (f).

(a) Co. Lit. 191 a, note 1; and see Fearn's C. R. 358.

(b) Oates v. Cooke, 3 Burr. 1684; Bush v. Allen, 5 Mod. 63; Anthony v. Rees, 2 Cr. & Jer. 75; Doe v. Shotter, 8 Ad. & Ell. 905; [Davies to Jones, 24 Ch. D. 190; Re Fisher and Haslett, 13 L. R. Ir. 546.] If a testator appoint his solicitor sole trustee of his will, with a direction that the solicitor is to be paid as a solicitor as if he were not a trustee, it constitutes him a *trustee* only and

not an *executor*, according to the tenor of the will. *Re Goods of Lowry*, 3 L. R. P. & D. 157.

[(c) *Re Cameron*, 26 Ch. D. 19.]

(d) *Trent v. Hanning*, 1 B. & P. New Rep. 116; 10 Ves. 495; 7 East, 95; 1 Dow, 102; *Doe v. Pratt*, 6 Ad. & Ell. 180.

(e) *Bennett v. Bennett*, 2 Dr. & Sm. 266.

(f) *Re Hough's Will*, 4 De G. & Sm. 371; *Re Turner*, 2 De G. F. & J. 527.